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|     |                                                      | <p>and the moving Defendants, the demurrer is SUSTAINED. Although this is Plaintiff's third attempt to plead this cause of action, the Court will grant one final opportunity for Plaintiff to amend her pleading. Plaintiff shall 20 days leave to amend.</p> <p>In light of the Court's ruling on the demurrer, the Motion to Strike is MOOT.</p> <p>The Case Management Conference is continued to October 1, 2026 at 1:30 p.m.</p> <p>Finally, the Court notes that Plaintiff has filed an ex parte to advance the hearing on her motion for leave to file a third amended complaint. In light of the rulings above, the Court deems the ex parte and the motion scheduled for 10/15/2026 MOOT and the Court vacates the 10/15/2026 hearing date.</p> <p><i>Moving parties to give notice.</i></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 108 | Norton vs. Sprouts Farmers Market, Inc., 22-01282213 | <p>Defendant, SF MARKETS, LLC dba Sprouts Farmers Market will and hereby does move the Court for Summary Judgment in its favor and against Plaintiff CHERIE NORTON. Alternatively, Defendant moves for Summary Adjudication of the following issues:</p> <p>ISSUE NO. 1: Plaintiff's negligence and premises liability causes of action fail because Defendant did not have actual notice of the alleged dangerous condition prior to Plaintiff's alleged incident.</p> <p>ISSUE NO. 2: Plaintiff's negligence and premises liability causes of action fail because Defendant did not have constructive notice of the alleged dangerous condition, as the undisputed evidence establishes that the area was inspected approximately 16–17 minutes before the alleged incident, and the condition developed thereafter.</p> <p>Initially, as to the alternative request for summary adjudication, Defendant seeks adjudication as to issues of actual and constructive notice. However, this request is not proper under CCP §437c(f)(1). ["A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs." CCP §437c(f)(1).] As such, the</p> |

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|  |  | <p>Court will treat this motion as one of summary judgment only.</p> <p>In this instance, on 9/21/22, Plaintiff filed a Complaint against Defendant SF MARKET, LLC (Erroneously sued herein as "SPROUTS FARMERS MARKET, INC.") which contains causes of action for general negligence and premises liability.</p> <p>In the Judicial Council Form Complaint, Plaintiff pleads, "As Plaintiff walked within the subject premises, she stepped on water and/or similar substance on the floor causing her to slip and fall, thereby causing Plaintiff to endure severe injury and pain." She also pleads, "Said Defendants, and each of them, fully and well knew, or should have known in the exercise of reasonable care, that the dirty and or wet floor in said establishment were in a dangerous and defective and unsafe condition, and a menace to Plaintiff and others lawfully on said premises, By reason of the aforesaid negligence, carelessness and recklessness of Defendants, and each of them, as aforesaid, and as a direct and proximate result thereof, dangerously dirty and/or wet floor that was not properly installed, maintained, cleaned and/or protected at said property causing Plaintiff to sustain the injuries and damages as hereinafter alleged."</p> <p>[Complaint, ROA 2.]</p> <p>Here, Defendant's motion does not indicate which element it is specifically attacking, but does argue that Plaintiff cannot establish Defendant had actual or constructive notice of the substance Plaintiff allegedly slipped upon.</p> <p>As to actual notice, Defendant argues, "There is no evidence that Defendant or its employees created the alleged condition, observed it prior to Plaintiff's incident, or received any complaints before the incident occurred." (Motion page 6:5-6.) Indeed, there does not appear to be much of a factual dispute as to actual notice.</p> <p>As to constructive notice, Defendant submits the Declaration of the Store Manager, Crystal Rodriguez, who declares, "During each operating day, Sprouts employees conduct both general sweeps/inspections (which is the entire store, including the produce department) and produce sweeps/inspections (limited to the produce department). During these sweeps, the employee conducting the sweep will inspect the floors for any liquid, debris or other foreign substances on the floor and will clean/sweep the aisles." (Decl. of Rodriguez¶1.)</p> |
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Additionally, she states, "Employees who perform the sweeps/inspections document that the sweep/inspection has been completed by swiping their employee badge to document the sweep via a time clock and then selecting the type of sweep that occurred – 'store sweep' or 'produce sweep'. The inspection is considered to be completed once the employee finished the sweep/inspection, and they subsequently log the same via a time clock." (Id. ¶2.)

To that end, an attached Store Sweep Update (Notice of Errata, Ex. G, ROA 153) indicates that (former) employee Angelo Proetti completed a produce sweep at 7:39:29 p.m. on 9/27/2020.

As it is undisputed that the fall occurred at approximately 7:55pm (UMF No. 5), the question is whether 16 minutes is a long enough period of time for Defendant to have discovered the substance upon which Plaintiff allegedly slipped.

In support of the issue of time, Defendant cites *Girvetz v. Boys' Market* (1949) 91 Cal.App.2d 827, wherein the Court held: "[W]here the only evidence is that the foreign object has been on the floor of the market for 'a minute and a half,' it must be held that it is insufficient to support an inference that the defendant proprietor failed to exercise the care required of him." (Id. at 831). The Court in *Girvetz* explained: "Obviously, the exact time that a dangerous condition must exist in order to charge the proprietor cannot be stated as a matter of law. It can only be held that, in the circumstances of the case now before the court, one and one-half minutes is too short a period." (Id. at 832). The Court explained that a contrary finding would essentially impose a duty of "utmost," rather than "ordinary," care. (Id.).

Defendant also cites to *Barrera v. Costco Wholesale Corp.* (9th Cir. Aug. 17, 2022, No. 21-16474) 2022 U.S. App. LEXIS 22927, where a summary judgment was affirmed where the area had been inspected approximately 18 minutes before the fall.

These cases are not abundantly helpful as unlike *Girvetz*, the last inspection was 16 minutes prior to the incident. And, *Barrera*, is an unpublished federal decision that is not binding on this Court and likewise assumed an actual, undisputed inspection.

Nevertheless, Defendant appears to have sustained its initial, substantive burden and the burden shifts to Plaintiff to create a triable issue of material fact.

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|  | <p>To that end, Plaintiff argues that a triable issue of material fact exists because, "The vegetable matter had been trampled by a lot of people for a long period of time, i.e. hours, in plain view of those employees. (PMF Nos. 27, 35, 38.)" (Opp page 12:13-16.) In support of this argument she refers to her deposition testimony and the video she took after her fall.</p> <p>As to what was involved in the incident, Plaintiff testified, "I can only say that I saw what looked like a slippery substance of some kind and also smashed spinach or other vegetable." (Guirguis Decl. ¶ 4, Exhibit 2, Norton Depo., Vol. II, 109:1-3.)</p> <p>When asked how long either had been on the floor, Plaintiff testified, "It appeared to be there a long time due to the fact it appeared to be smashed in little pieces." (Id. page 110:1-4.)</p> <p>The video, taken by Plaintiff after the incident, reveals a small amount of liquid substance, and what looks like a smashed leafy green. The type of vegetable is difficult to assess given its ruined state.</p> <p>Obviously, it is unclear whether Plaintiff herself reduced the vegetable to this smashed state by stepping on it, or whether it had been on the floor for a long period of time.</p> <p>While Plaintiff's assertion that the vegetable had been on the floor for a long period of time seems speculative, Plaintiff's arguments are sufficient to convince the Court that the matter should be determined as a question of fact for the jury.</p> <p>"Plaintiffs may demonstrate the storekeeper had constructive notice of the dangerous condition if they can show that the site had not been inspected within a reasonable period of time so that a person exercising due care would have discovered and corrected the hazard. (<i>Bridgman, supra</i>, 53 Cal.2d at p. 447.) In other words, if the plaintiffs can show an inspection was not made within a particular period of time prior to an accident, they may raise an inference the condition did exist long enough for the owner to have discovered it. (<i>Ibid.</i>) It remains a question of fact for the jury whether, under all the circumstances, the defective condition existed long enough so that it would have been discovered and remedied by an owner in the exercise of reasonable care."</p> <p>[<i>Ortega v. Kmart Corp.</i> (2001) 26 Cal.4th 1200, 1212-1213.]</p> |
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|     |                                   | <p>Here, Plaintiff argues that there is no real evidence that Proetti made the sweep at all (indeed there is no testimony from Mr. Proetti); the slip occurred in the produce section which is a self-serve and highly trafficked area requiring a heightened duty of inspection; and Defendant's authorities do not support granting the motion as a matter of law.</p> <p>Given these arguments, Plaintiff has sufficiently established an inference the condition did exist long enough for the owner to have discovered it, sufficient to go to the jury. At a minimum, it raises a triable issue of fact and as a result, the Motion is DENIED in its entirety.</p> <p><i>Plaintiff to give notice.</i></p> |
| 109 | Nguyen vs. Nguyen,<br>24-01371446 | <i>Off-calendar.</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |